

STATE OF NEW YORK

5175--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. SOLAGES -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring certain security features and warning labels on baby monitors

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 399-iii to read as follows:

3 § 399-iii. Baby monitors. 1. As used in this section, "baby monitor"
4 means a device that is marketed exclusively for the purpose of broad-
5 casting audio or video of an infant or child. The term shall not include
6 a multi-functional device such as a smart phone, digital video camera,
7 security camera, or other similar device.

8 2. (a) No person, firm, partnership, association, or corporation shall
9 manufacture, distribute, sell or offer for sale a new baby monitor that
10 broadcasts audio or video through an internet connection unless it
11 includes: (i) security features to prevent unauthorized users from hear-
12 ing or viewing activity; and (ii) a label or notice warning consumers of
13 the risks associated with an unsecured baby monitor connection, and the
14 importance of using its security features.

15 (b) The label or notice required by paragraph (a) of this subdivision
16 shall be displayed in a written, printed, or graphic manner on the box,
17 container, or package of a baby monitor, or shall otherwise accompany
18 the baby monitor at the time of its distribution or sale in type no less
19 than size twelve-point font. The information on the label shall be
20 conspicuous and easily understandable to consumers and be substantially
21 similar to the following:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 "WARNING! THIS PRODUCT CONNECTS TO THE INTERNET. TO PREVENT UNAUTHOR-
2 IZED USERS FROM ACCESSING OR VIEWING PRODUCT ACTIVITY, USE THE SECURITY
3 FEATURES PROVIDED."

4 3. Manufacturers shall be responsible for ensuring that all baby moni-
5 tors have the security features to prevent unauthorized users from hear-
6 ing or viewing activities and the warning label as required by subdivi-
7 sion two of this section.

8 4. Any person, firm, partnership, association, or corporation in
9 violation of this section shall be subject to a civil penalty of not
10 more than two hundred fifty dollars for a first violation and not more
11 than five hundred dollars for a second or subsequent violation of this
12 section. The provisions of this section shall be enforced concurrently
13 by the director or commissioner of a municipal consumer affairs office,
14 or by the town attorney, city corporation counsel, or other lawful
15 designee of a municipal or local government, and all moneys collected
16 thereunder shall be retained by such municipality or local government.

17 § 2. This act shall take effect on the ninetieth day after it shall
18 have become a law. Effective immediately, the addition, amendment and/or
19 repeal of any rule or regulation necessary for the implementation of
20 this act on its effective date are authorized to be made and completed
21 on or before such effective date.